

SENATE BILL No. 177

DIGEST OF INTRODUCED BILL

Citations Affected: IC 35-47-3-5.

Synopsis: Return of firearm to rightful owner. Provides that a person may not waive certain requirements concerning the return of a firearm to the rightful owner as part of a plea agreement. Specifies that any purported waiver is invalid and unenforceable as against public policy.

Effective: July 1, 2026.

Tomes

January 5, 2026, read first time and referred to Committee on Corrections and Criminal Law.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 177

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 35-47-3-5 IS ADDED TO THE INDIANA CODE
- 2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
- 3 1, 2026]: **Sec. 5. (a) A person may not waive the requirements**
- 4 **under section 2 of this chapter concerning the return of a firearm**
- 5 **to the rightful owner as part of a plea agreement.**
- 6 **(b) Any purported waiver of the requirements described in**
- 7 **subsection (a) in a plea agreement is invalid and unenforceable as**
- 8 **against public policy.**

